

Department of Regulatory Agencies

Office of Surgical Assistant and Surgical Technologist Registration

SURGICAL ASSISTANT AND SURGICAL TECHNOLOGIST RULES AND REGULATIONS

4 CCR 745-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.1 AUTHORITY

These regulations are adopted pursuant to the authority in sections 12-20-204 and 12-310-103(4), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 et seq. (the "APA"), C.R.S., and the Surgical Assistant and Surgical Technologist Practice Act, sections 12-310-101 et seq. (the "Practice Act"), C.R.S.

1.2 SCOPE AND PURPOSE

This regulation shall govern the process to become a surgical assistant and surgical technologist and the practice as surgical assistant and a surgical technologist in Colorado.

1.3 APPLICABILITY

The provisions of this section shall be applicable to the practice as a surgical assistant and a surgical technologist in Colorado.

1.4 CLARIFICATION OF WHO IS REQUIRED TO REGISTER AS A SURGICAL ASSISTANT OR A SURGICAL TECHNOLOGIST

This Rule is promulgated pursuant to sections 12-20-204, 12-310-102, 12-310-103(4), C.R.S.

- A. Anyone who regularly performs the majority of the duties of a surgical assistant or a surgical technologist who is employed, contracted, or credentialed by a healthcare facility needs to register.

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B. A person who is performing surgical assistant or surgical technologist functions within the scope of another license, certification or registration does not need to register for the surgical assistant or Surgical Technologist program.

C. Definitions:

1. "Healthcare facility" is defined as a hospital, ambulatory surgical center, freestanding surgical outpatient facility, or similar facility.

1.5 DECLARATORY ORDERS

The Rule is promulgated pursuant to sections 12-20-204, 12-310-103(4), 24-4-105(11), C.R.S.

- A. Any person or entity may petition the Director of the Division of Professions and Occupations (Director) for a declaratory order to terminate controversies or remove uncertainties as to the applicability of any statutory provision or of any rule or order of the Director.
- B. The Director will determine, at her discretion and without notice to petitioner, whether to rule upon such petition. If the Director determines that she will not rule upon such a petition, the Director shall promptly notify the petitioner of her action and state the reasons for such decision.
- C. In determining whether to rule upon a petition filed pursuant to this Rule, the Director will consider the following matters, among others:
1. Whether a ruling on the petition will terminate a controversy or remove uncertainties as to the applicability to petitioner of any statutory provisions or rule or order of the Director.
 2. Whether the petition involves any subject, question or issue that is the subject of a formal or informal matter or investigation currently pending before the Director or a court involving one or more petitioners.
 3. Whether the petition involves any subject, question or issue that is the subject of a formal or informal matter or investigation currently pending before the Director or a court but not involving any petitioner.

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4. Whether the petition seeks a ruling on a moot or hypothetical question or will result in an advisory ruling or opinion.
 5. Whether the petitioner has some other adequate legal remedy, other than an action for declaratory relief pursuant to Colorado Rules of Civil Procedure 57, which will terminate the controversy or remove any uncertainty as to the applicability to the petitioner of the statute, rule, or order in question.
- D. Any petition filed pursuant to this rule shall set forth the following:
1. The name and address of the petitioner and whether the petitioner is registered pursuant to Title 12, Article 310.
 2. The statute, rule, or order to which the petition relates.
 3. A concise statement of all of the facts necessary to show the nature of the controversy or uncertainty and the manner in which the statute, rule, or order in question applies or potentially applies to the petitioner.
- E. If the Director determines that she will rule on the petition, the following procedures shall apply:
1. The Director may rule upon the petition based solely upon the facts presented in the petition. In such a case:
 - a. Any ruling of the Director will apply only to the extent of the facts presented in the petition and any amendment to the petition.
 - b. The Director may order the petitioner to file a written brief, memorandum, or statement of position.
 - c. The Director may set the petition, upon due notice to petitioner, for a non-evidentiary hearing.
 - d. The Director may dispose of the petition on the sole basis of the matters set forth in the petition.

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- e. The Director may request the petitioner to submit additional facts in writing. In such event, such additional facts will be considered as an amendment to the petition.
 - f. The Director may take administrative notice of facts pursuant to the Colorado Administrative Procedures Act at section 24-4-105(8), C.R.S., and may utilize her experience, technical competence, and specialized knowledge in the disposition of the petition.
 - 2. If the Director rules upon the petition without a hearing, she shall promptly notify the petitioner of her decision.
 - 3. The Director may, at her discretion, set the petition for hearing, upon due notice to petitioner, for the purpose of obtaining additional facts or information or to determine the truth of any facts set forth in the petition or to hear oral argument on the petition. The hearing notice to the petitioner shall set forth, to the extent known, the factual or other matters that the Director intends to inquire.
 - 4. For the purpose of such a hearing, to the extent necessary, the petitioner shall have the burden of proving all the facts stated in the petition; all of the facts necessary to show the nature of the controversy or uncertainty; and the manner in which the statute, rule, or order in question applies or potentially applies to the petitioner and any other facts the petitioner desires the Director to consider.
- F. The parties to any proceeding pursuant to this Rule shall be the Director and the petitioner. Any other person may seek leave of the Director to intervene in such a proceeding, and leave to intervene will be granted at the sole discretion of the Director. A petition to intervene shall set forth the same matters as are required by section (D) of this Rule. Any reference to a "petitioner" in this Rule also refers to any person who has been granted leave to intervene by the Director.

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- G. Any declaratory order or other order disposing of a petition pursuant to this Rule shall constitute agency action subject to judicial review pursuant to the Colorado Administrative Procedures Act at section 24-4-106, C.R.S.

1.6 REPORTING CRIMINAL CONVICTIONS, JUDGMENTS, AND ADMINISTRATIVE PROCEEDINGS

This Rule is promulgated pursuant to sections 12-20-204, 12-310-103(3)(b), and 12-310-103(4), C.R.S.

A registrant shall inform the Director, in a manner set forth by the Director, within thirty days of any of the following events:

- A. The conviction of the registrant of a misdemeanor related to drugs and alcohol or any felony under the laws of any state or of the United States, or a crime related to the registrant's practice as a surgical assistant or surgical technologist. A guilty verdict, a guilty plea, or a nolo contendere plea accepted by the court is considered a conviction for the purposes of this Rule;
- B. A disciplinary action imposed upon the registrant by another jurisdiction that registers or licenses surgical assistants or surgical technologists, which would be a violation of section 12-310-106(2)(f) or (i), C.R.S., including, but not limited to, a citation, sanction, probation, civil penalty, or a denial, suspension, revocation, or modification of a license or registration whether it is imposed by consent decree, order, or other decision, for any cause other than failure to pay a license or registration fee by the due date or failure to meet continuing professional education requirements;
- C. Revocation or suspension by another state board, municipality, federal or state agency of any health services-related license or registration, other than a license or registration for surgical assistants or surgical technologists as described in section 12-310-106, C.R.S.;
- D. Any judgment, award, or settlement of a civil action or arbitration in which there was a final judgment or settlement against the registrant for malpractice as a surgical assistant or surgical technologist.

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- E. The notice to the Director shall include the following information:
1. If the event is an action by a governmental agency (as described above), the name of the agency, its jurisdiction, the case name, and the docket, proceeding, or case number by which the event is designated, and a copy of the consent decree, order, or decision;
 2. If the event is a felony conviction or a misdemeanor conviction for drugs or alcohol, the court, its jurisdiction, the case name, the case number, a description of the matter or a copy of the indictment or charges, and any plea or verdict entered by the court. The registrant shall also provide to the Director a copy of the imposition of sentence related to the conviction and the completion of all terms of the sentence within ninety days of such action;
 3. If the event concerns a civil action or arbitration proceeding, the court or arbiter, the jurisdiction, the case name, the case number, a description of the matter or a copy of the complaint, and a copy of the verdict, the court or arbitration decision, or, if settled, the settlement agreement and court's order of dismissal.
- F. The registrant notifying the Director may submit a written statement with the notice to be included with the registrant records.

1.7 REGARDING THE CONTINUING DUTY TO REPORT INFORMATION TO THE DIRECTOR'S OFFICE

This Rule is promulgated pursuant to sections 12-20-204 and 12-310-103(4), C.R.S.

Each registrant shall provide notice to the Office within thirty days of any change of address, email address, or change in name in a manner established by the Director.

1.8 CONFIDENTIAL AGREEMENTS TO LIMIT PRACTICE FOR PHYSICAL CONDITION OR DISABILITY, A BEHAVIORAL, MENTAL HEALTH OR SUBSTANCE USE DISORDER, OR AN INTELLECTUAL AND DEVELOPMENTAL DISABILITY

This Rule is promulgated pursuant sections 12-20-204, 12-30-108, 12-310-103, and 12-310-108.5, C.R.S.

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- A. Notice to the Director. No later than thirty days from the date a physical condition or disability, a behavioral, mental health, or substance use disorder, or an intellectual and developmental disability that renders the registrant unable to perform the registrant's tasks with reasonable skill and safety, the registrant shall provide the Director, in writing, the following information:
1. The diagnosis and a description of the illness, disorder, disability, or condition;
 2. The date that the illness, disorder, disability, or condition was first diagnosed;
 3. The name of the current treatment provider and documentation from the current treatment provider confirming the diagnosis, date of onset, and treatment plan;
 4. A description of the registrant's practice and any modifications, limitations or restrictions to that practice that have been made as a result of the illness, disorder, disability, or condition;
 5. Whether the registrant has been evaluated by, or is currently receiving services from the Director's authorized peer health assistance program related to the illness, disorder, disability, or condition and, if so, the date of initial contact and whether services are ongoing.
- B. Change of Circumstances; Further Notice. The registrant shall further notify the Director of any significant change in the illness, disorder, disability, or condition ("change of condition") that impacts the registrant's ability to perform as a surgical assistant and surgical technologist with reasonable skill and safety. The registrant must notify the Director of a positive or negative change of condition. Such notification shall occur within thirty days of the change of condition. The registrant shall provide the Director, in writing, the following information:
1. The date of the change of condition;
 2. The name of the current treatment provider and documentation from the current treatment provider confirming the change of condition, the date

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- that the condition changed, the nature of the change of condition, and the current treatment plan;
3. A description of the registrant's practice and any modifications, limitations or restrictions to that practice that have been made as a result of the change of condition;
 4. Whether the registrant has been evaluated by, or is currently receiving services from, the Director's authorized peer health assistance program related to the change of condition and, if so, the date of initial contact and whether services are ongoing.
- C. Confidential Agreement; Director Discretion. Compliance with this Rule is a prerequisite for eligibility to enter into a Confidential Agreement with the Director pursuant to sections 12-30-108 and 12-310-108.5, C.R.S. However, mere compliance with this Rule does not require the Director to negotiate regarding, or enter into, a confidential agreement. Rather, the Director will evaluate all facts and circumstances to determine if a confidential agreement is appropriate.
- D. Failure to Notify. If the Director discovers that a registrant has a physical condition or disability, a behavioral, mental health, or substance use disorder, or an intellectual and developmental disability that renders the registrant unable to perform the registrant's tasks with reasonable skill and safety or that may endanger the health or safety of individual's receiving services, the registrant shall not be eligible for a confidential agreement and may be subject to disciplinary action for failure to notify under section 12-310-106(2)(d)(I), C.R.S., and other related violations contemplated under section 12-310-106(2)(d), C.R.S.

1.9 CONCERNING HEALTH CARE PROVIDER DISCLOSURES TO CONSUMERS ABOUT THE POTENTIAL EFFECTS OF RECEIVING EMERGENCY OR NONEMERGENCY SERVICES FROM AN OUT-OF-NETWORK PROVIDER

This rule is promulgated pursuant to sections 12-20-204, 12-30-112, and 12-310-103(4), C.R.S., in consultation with the Commissioner of Insurance and the State Board of Health. The purpose of this rule is to establish requirements for health care providers to provide disclosures to covered persons who are utilizing a health benefit plan about the

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potential of balance billing when receiving post-stabilization services or covered non-emergency services from an out-of-network provider at an in-network facility. This rule applies to health care providers. Balance billing by a health care provider is only permitted when the criteria established in Colorado law, including but not limited to sections 12-30-112 and 12-30-113, C.R.S., are met.

A. Definitions, for purposes of this rule, are as follows:

1. "Ancillary Services" as defined in section 12-30-112(1)(a), C.R.S.
2. "Balance Bill" and "Balance Billing" as defined in section 10-16-704(19)(c), C.R.S.
3. "Covered Non-emergency Services" means services that are not emergency services as defined in section 10-16-704(19)(e), C.R.S., are services covered by a covered person's health benefit plan, and are not ancillary services as defined in section 12-30-112(1)(a), C.R.S.
4. "Covered Person" as defined by section 10-16-102(15), C.R.S.
5. "Health Benefit Plan" as defined by section 10-16-102(32), C.R.S.
6. "Health Care Provider" means "provider," as defined in section 10-16-102(56), C.R.S.
7. "In-Network Facility" means a facility, either within or outside of Colorado, that, under a contract with a carrier or with its contractor or subcontractor, has agreed to provide health-care services to covered persons with an expectation of receiving payment, other than coinsurance, copayments, or deductibles, directly or indirectly, from the carrier.
8. "Out-of-Network Provider" means a Health Care Provider who is not a "Participating Provider."
9. "Participating Provider" as defined in section 10-16-102(46), C.R.S.
10. "Post-Stabilization Services" means covered services related to an emergency medical condition, as defined in section 10-16-704(19)(d),

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C.R.S., that are provided once the criteria set forth in section 10-16-704(19)(e)(III) are met.

B. Disclosure requirements.

1. An Out-of-Network Provider may balance bill a Covered Person for (a) Post-Stabilization Services in accordance with section 10-16-704, C.R.S., and (b) Covered Non-Emergency Services provided in an In-Network Facility that are not Ancillary Services, but only if the Out-of-Network Provider meets the requirements set forth in section 12-30-112(3.5), C.R.S.
2. If a Covered Person may incur a claim for Post-Stabilization Services or Covered Non-Emergency Services from an Out-of-Network Provider, the Out-of-Network Provider shall complete and provide the notice contained in Appendix A of these rules or a similar disclosure which complies with the requirements set forth in section 12-30-112(3.5), C.R.S.
3. Such notice must be provided in the 15 most common languages in Colorado, which, for purposes of this regulation, are English, Spanish, Vietnamese, Chinese, Korean, Russian, Amharic, Arabic, German, French, Nepali, Tagalog, Japanese, Cushite, Persian.

C. If applicable and in addition to their responsibilities under this Rule, Health Care Providers shall also comply with the “No Surprises Act,” 42 U.S.C.A. § 300gg-111, Pub.L 116-260, as amended.

D. Noncompliance with this Rule may result in the imposition of any of discipline made available by section 12-310-106(2)(e), C.R.S.

1.10 REQUIRED DISCLOSURE TO PATIENTS – CONVICTION OF OR DISCIPLINE BASED ON SEXUAL MISCONDUCT

This Rule is promulgated pursuant to sections 12-20-204, 12-30-115, and 12-310-103(4), C.R.S.

- A. On or after March 1, 2021, a provider, shall disclose to a patient, as defined in section 12-30-115(1)(a), C.R.S., instances of sexual misconduct, including a

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conviction or guilty plea as set forth in section 12-30-115 (2)(a) C.R.S., or final agency action resulting in probation or limitation of the provider's ability to practice as set forth in section 12-30-115(2)(b), C.R.S.

- B. Form of Disclosure: The written disclosure shall include all information specified in section 12-30-115(3), C.R.S., and consistent with the sample model disclosure form as set forth in Appendix B to these rules. The patient must, through his or her signature on the disclosure form, acknowledge the receipt of the disclosure and agree to treatment with the registrant.
- C. Timing of Disclosure: This disclosure shall be provided to a patient the same day the patient schedules a professional services appointment with the provider. If an appointment is scheduled the same day that services will be provided or if an appointment is not necessary, the disclosure must be provided in advance of the treatment.
1. The written disclosure and agreement to treatment must be completed prior to each treatment appointment with a patient unless the treatment will occur in a series over multiple appointments or a patient/patient schedules follow-up treatment appointments.
 2. For treatment series or follow-up treatment appointments, one disclosure prior to the first appointment is sufficient, unless the information the provider is required to disclose pursuant to section 12-30-115, C.R.S., has changed since the most recent disclosure, in which case an updated disclosure must be provided to a patient and signed before treatment may continue.
- D. As set forth in section 12-30-115(3)(e), C.R.S., the requirement to disclose the conviction, guilty plea, or agency action ends when the provider has satisfied the requirements of the probation or other limitation and is no longer on probation or otherwise subject to a limitation on the ability to practice the provider's profession.

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- E. A provider is not required to provide the written disclosure before providing professional services to the patient in the following instances as set forth in section 12-30-115(4), C.R.S.:
1. The patient is unconscious or otherwise unable to comprehend the disclosure and sign an acknowledgment of receipt of the disclosure pursuant to section 12-30-115(3)(d), C.R.S., and a guardian of the patient is unavailable to comprehend the disclosure and sign the acknowledgment;
 2. The patient visit occurs in an emergency room or freestanding emergency department or the visit is unscheduled, including consultations in inpatient facilities; or
 3. The provider who will be treating the patient during the visit is not known to the patient until immediately prior to the start of the visit.
- F. The provider who does not have a direct treatment relationship or have direct contact with the patient is not required to make the disclosure required by this section.

1.11 PROTECTIONS FOR PROVISION OF REPRODUCTIVE HEALTH CARE IN COLORADO

This Rule is promulgated pursuant to Executive Order D 2022 032, and sections 25-6-401 et seq., 12-310-103(4), and 12-20-204, C.R.S.

- A. Definitions, for purposes of this Rule, are as follows:
1. “Applicant” means as defined in section 12-20-102(2), C.R.S.
 2. “Assisting in the provision reproductive health care” means aiding, abetting or complicity in the provision of reproductive health care.
 3. “Civil judgment” means a final court decision and order resulting from a civil lawsuit.
 4. “Criminal judgment” means a guilty verdict, a plea of guilty, a plea of nolo contendere, or a deferred judgment or sentence.

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5. "Provision of reproductive health care," includes but is not limited to, transportation for reproductive health care, referrals for reproductive health care and related services, funding or assisting with payment of reproductive health care, prescribing, shipping or dispensing medications for reproductive health care in accordance with state and federal law, all options and mental health counseling and treatment related to reproductive health care. The "provision of reproductive health care" also includes all treatment contemplated in the definition of section 25-6-402(4), C.R.S.
 6. "Registrant" means as defined in section 12-20-102(12), C.R.S.
 7. "Regulator" means as defined in section 12-20-102(14), C.R.S.
 8. "Reproductive health care" means as defined in section 25-6-402(4), C.R.S.
- B. The regulator shall not deny registration to an applicant or impose disciplinary action against an individual's registration based solely on the applicant or registrant's provision of or assistance in the provision of reproductive health care in this state or any other state or U.S. territory, so long as the care provided was consistent with generally accepted standards of practice as defined in Colorado law and did not otherwise violate Colorado law.
- C. The regulator shall not deny registration to an applicant or impose disciplinary action against an individual's registration based solely on a civil or criminal judgment against the applicant or registrant arising from the provision of, or assistance in the provision of reproductive health care in this state or any other state or U.S. territory, so long as the care provided was consistent with generally accepted standards of practice and did not otherwise violate Colorado law.
- D. The regulator shall not deny registration to an applicant or impose disciplinary action against an individual's registration based solely on a professional disciplinary action or any other sanction against the applicant's or registrant's professional registration in this, or any other state or U.S. territory so long as the

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professional disciplinary action is based solely on the applicant's or registrant's provision of, or assistance in the provision of, reproductive health care and the care provided was consistent with generally accepted standards of practice and did not otherwise violate Colorado law.

- E. The regulator shall not deny registration to an applicant or impose disciplinary action against an individual's registration based solely on the registrant's own personal effort to seek or obtain reproductive health care for themselves. The regulator shall not deny registration to an applicant or impose disciplinary action against an individual's registration based solely on a civil or criminal judgment against the applicant or registrant arising from the individual's own personal receipt of reproductive health care in this state or any other state or U.S. territory.

1.12 PROTECTING COLORADO'S WORKFORCE AND EXPANDING LICENSING OPPORTUNITIES

This Rule is promulgated pursuant to Executive Order D 2022 034, and sections 12-310-103(4) and 12-20-204, C.R.S.

- A. Definitions, for purposes of this Rule, are as follows:
1. "Applicant" means as defined in section 12-20-102(2), C.R.S.
 2. "Civil judgment" means a final court decision and order resulting from a civil lawsuit.
 3. "Criminal judgment" means a guilty verdict, a plea of guilty, a plea of nolo contendere, *or* a deferred judgment or sentence.
 4. "Registrant" means as defined in section 12-20-102(12), C.R.S.
 5. "Regulator" means as defined in section 12-20-102(14), C.R.S.
- B. [Expired 05/15/2023 per Senate Bill 23-102]
- C. [Expired 05/15/2023 per Senate Bill 23-102]
- 1.7 [Emergency rule expired 05/09/2023]**
- 1.9 [Emergency rule expired 05/09/2023]**

APPENDIX A**BALANCE BILLING NOTICE****PATIENT RIGHTS INFORMATION**

Check the appropriate box:

- ☐ Your provider is proposing to use an out-of-network care provider in delivering your health care service(s). This facility is in-network with your insurance but there may be care providers involved in your care that are out-of-network.
- ☐ Your provider is proposing to deliver post-stabilization care at an out-of-network facility. You have received emergency services at the out-of-network facility and are now stabilized, but you may require additional health care services.

You are not required to consent to receive these services from the out-of-network care provider or continue to receive post-stabilization care at an out-of-network facility. If you choose to proceed with the proposed out-of-network care provider or facility you may be billed for costs detailed in the Good Faith Estimate below. The additional costs you pay may not accrue toward insurance cost sharing or deductibles.

You may choose to use an in-network provider from the list below or you may choose to transfer your care to an in-network facility for post-stabilization services. If you choose to proceed with an in-network provider or transfer to an in-network facility, the cost will not exceed the amount allowed by your insurance plan.

You chose to receive this Notice ☐ electronically or ☐ in paper form.

This notice must have been provided to you, either in paper or electronically, per your preference within the following timeframes:

1. At least seventy-two hours in advance of the date of services, if the appointment was scheduled at least seventy-two hours in advance;
2. At least three hours before the scheduled appointment, if the appointment was made less than seventy-two hours in advance.

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This is not a contract for services. Your provider is required to retain this form for seven years.

This form must be available to you in the 15 languages most common to the geographic region where your provider is located, which include English, Spanish, Vietnamese, Chinese, Korean, Russian, Amharic, Arabic, German, French, Nepali, Tagalog, Japanese, Cushite, and Persian.

BILLING ADVISEMENT

(choose applicable billing scenario)

☐ Out-of-Network Provider at In-Network Facility

Your provider is proposing to use an out-of-network care provider in delivering your service(s). That out-of-network provider is/are:

[PROVIDER NAME]

Description of service(s) to be provided by an in-network facility by an out-of-network provider:

[SERVICE]

You scheduled the service(s) on [DATE] at [TIME]. You are planning to receive the service(s) stated above on [DATE] at [TIME]

Do you need prior authorization from your insurance company for the service(s) provided at this facility?

[Y / N]

Good Faith Estimate for the total cost of the service(s) to you, the patient:

[\$]

Does this facility employ in-network care providers who provide the service(s) detailed above?

[Y / N]

If Yes, the in-network care provider(s) who provide the service(s) are:

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[PROVIDER NAME]

NOTE: If there is no in-network provider to provide the service(s) at this in-network facility you cannot be balanced billed for the services provided by the out-of-network provider. **OR**

☐ Post-Stabilization Services

Your provider is proposing to deliver post-stabilization care at an out-of-network facility. The out-of-network facility is and/or the provider(s) is/are:

[FACILITY/PROVIDER NAME]

Description of post-stabilization service(s) to be provided by an out-of-network facility or provider:

[SERVICE]

You scheduled the service(s) on [DATE] at [TIME]. You are planning to receive the service(s) stated above on [DATE] at [TIME].

Good Faith Estimate for the total cost of the service(s) to you, the patient:

[\$]

I [PATIENT NAME] received this form at [TIME] on [DATE].

SIGNATURE OF PATIENT

[TIME] and [DATE]

APPENDIX B**MODEL SEXUAL MISCONDUCT DISCLOSURE STATEMENT**

DISCLAIMER: This Model Sexual Misconduct Disclosure Statement is to be used as a guide only and is aimed only to assist the practitioner in complying with section 12-30-115, C.R.S., and the rules promulgated pursuant to this statute by the Director. As a licensed, registered, and/or certified health care provider in the State of Colorado, you are responsible for ensuring that you are in compliance with state statutes and rules. While the information below must be included in your Sexual Misconduct Disclosure Statement pursuant to section 12-30-115, C.R.S., you are welcome to include additional information that specifically applies to your situation and practice.

- A. Provider information, including, at a minimum: name, business address, and business telephone number.
- B. A listing of any final convictions of or a guilty plea to a sex offense, as defined in section 16-11.7-102(3), C.R.S.
- C. For each such conviction or guilty plea, the provider shall provide, at a minimum:
 - 1. The date that the final judgment of conviction or guilty plea was entered;
 - 2. The nature of the offense or conduct that led to the final conviction or guilty plea;
 - 3. The type, scope, and duration of the sentence or other penalty imposed, including whether:
 - a. The provider entered a guilty plea or was convicted pursuant to a criminal adjudication;
 - b. The provider was placed on probation and, if so, the duration and terms of the probation and the date the probation ends; and,
 - c. The jurisdiction that imposed the final conviction or issued an order approving the guilty plea.

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- D. A listing of any final agency action by a professional regulatory board or agency that results in probationary status or other limitation on the provider's ability to practice if the final agency action is based in whole or in part on:
1. a conviction for or a guilty plea to a sex offense, as defined in section 16-11.7-102(3), C.R.S., or a finding by the professional regulatory board or Director that the provider committed a sex offense, as defined in as defined in section 16-11.7-102(3), C.R.S.; OR
 2. a finding by a professional regulatory board or agency that the provider engaged in unprofessional conduct or other conduct that is grounds for discipline under the part or article of Title 12 of the Colorado Revised Statutes that regulates the provider's profession, where the failure or conduct is related to, includes, or involves sexual misconduct that results in harm to a patient or presents a significant risk of public harm to patients..
- E. For each such final agency action by a professional regulatory board or agency the provider shall provide, at a minimum:
1. The type, scope, and duration of the agency action imposed, including whether:
 - a. the regulator and provider entered into a stipulation;
 - b. the agency action resulted from an adjudicated decision;
 - c. the provider was placed on probation and, if so, the duration and terms of probation; and
 - d. the professional regulatory board or agency imposed any limitations on the provider's practice and, if so, a description of the specific limitations and the duration of the limitations.
 2. The nature of the offense or conduct, including the grounds for probation or practice limitations specified in the final agency action;
 3. The date the final agency action was issued;

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4. The date the probation status or practice limitation ends; and
5. The contact information for the professional regulatory board or agency that imposed the final agency action on the provider, including information on how to file a complaint.

Sample Signature Block

I have received and read the sexual misconduct disclosure by [Provider Name] and I agree to treatment by [Provider Name].

Print Client Name

Client or Responsible Party's Signature**Date**

If signed by Responsible Party (parent, legal guardian, or custodian), print Responsible Party's name and relationship to client:

Print Responsible Party Name**Print Relationship to Client**

Provider Signature**Date**

Editor's Notes**History**

Entire rule emer. rule eff. 02/18/2011.

Entire rule eff. 04/14/2011.

Rules 3, 4, 5 eff. 03/30/2012.

Rule 5 repealed eff. 11/30/2012.

Rule 1.6, Appendix A emer. rules eff. 01/01/2020; expired 04/29/2020.

Rule 1.6, Appendix A eff. 04/30/2020.

Rule 1.7 emer. rule eff. 05/11/2020; expired 09/08/2020.

Rule 1.7 emer. rule eff. 09/09/2020.

Rules 1.8, Appendix B eff. 12/15/2020.

Rule 1.7 emer. rule eff. 12/28/2020.

Rule 1.9 emer. rule eff. 01/11/2021.

Rule 1.7 emer. rule eff. 04/27/2021.

Rule 1.9 emer. rule eff. 05/11/2021.

Rules 1.8 E-F eff. 05/30/2021.

Rules 1.7, 1.9 emer. rules eff. 07/12/2021.

Rules 1.1-1.10 eff. 10/15/2021.

Rules 1.7, 1.9 emer. rules eff. 11/02/2021.

Rules 1.7, 1.9 emer. rules eff. 03/02/2022.

Rules 1.7, 1.9 emer. rules eff. 06/28/2022.

Rules 1.11, 1.12 emer. rules eff. 08/15/2022.

Rules 1.7, 1.9 emer. rules eff. 10/26/2022.

Rules 1.7, 1.9 emer. rules eff. 11/11/2022.

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Rules 1.9, 1.11, 1.12, Appendix A eff. 11/30/2022.

Rules 1.7, 1.9 emer. rules eff. 01/09/2023; expired 05/09/2023.

Rules 1.9, Appendix A eff. 08/14/2026

Annotations

Rule 1.8 E.4 (adopted 10/21/2020) was not extended by Senate Bill 21-152 and therefore expired 05/15/2021.

Rules 1.12 B. and 1.12 C. (adopted 10/10/2022) were not extended by Senate Bill 23-102 and therefore expired 05/15/2023.